

SOLVED PRACTICE WORKBOOK

Administrative Tribunals - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 46 - Administrative Tribunals - Solved Practice Workbook

Subject: Polity | **GS Paper:** GS-II | **Legal control date:** 8 September 2026

Practice discipline: exactly 32 original MCQs before PYQs; answer order ABCD repeated eight times; 128 unique option explanations; 32 question-specific traps; three verified direct descriptive PYQs; exactly six original Mains models.

Exactly **32 original MCQs** appear before the PYQ section. Questions 25-32 provide targeted remediation. Correct-answer sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.

BASIC MCQS / REMEDIATION

MCQ 1. Tribunal versus departmental authority

Which statement best distinguishes a tribunal from a departmental appellate authority?

A. A tribunal exercises statute-conferred adjudicatory jurisdiction outside the departmental chain. B. A departmental appeal always ends in a binding constitutional judgment. C. Every departmental officer hearing objections becomes a constitutional court. D. Only a tribunal may apply natural justice.

Answer: A. A tribunal exercises statute-conferred adjudicatory jurisdiction outside the departmental chain.

Option-specific explanations:

- **A:** Correct: source, institutional position and adjudicatory power distinguish the tribunal.
- **B:** A departmental decision remains administrative and open to statutory or judicial control.
- **C:** A hearing duty creates a quasi-judicial function, not constitutional-court status.
- **D:** Natural justice also binds courts, departments and other authorities where applicable.

Examiner trap 1: Classify by source and function, not merely by use of a hearing.

MCQ 2. Article 323A law-maker

Article 323A legislation may be enacted by:

A. Parliament and every State Legislature concurrently. B. Parliament alone. C. Only a State Legislature after a resolution. D. The President without legislation.

Answer: B. Parliament alone.

Option-specific explanations:

- **A:** This confuses Article 323A with Article 323B's appropriate-legislature formula.
- **B:** Correct: clause (1) expressly begins with Parliament may by law provide.
- **C:** A State request may matter for SAT establishment, but is not legislative power under 323A.
- **D:** Article 323A requires law and grants no free-standing institutional power.

Examiner trap 2: Do not convert a State request for SAT establishment into State legislative competence.

MCQ 3. Article 323A procedure

Which is expressly within Article 323A(2)(c)?

A. Appointment of Governors. B. Creation of the Finance Commission. C. Procedure including limitation and rules of evidence. D. Amendment of the Seventh Schedule without Article 368.

Answer: C. Procedure including limitation and rules of evidence.

Option-specific explanations:

- **A:** Governors are governed by Part VI, not this tribunal clause.
- **B:** The Finance Commission arises under Article 280.
- **C:** Correct: limitation and rules of evidence are express.

- **D:** Part XIV-A creates no alternative constitutional-amendment procedure.

Examiner trap 3: The actual procedural rule comes from legislation, not the enabling phrase alone.

MCQ 4. Exclusion text and doctrine

What is the present legal effect of Article 323A(2)(d)'s court-exclusion text?

A. It fully bars Articles 226 and 227. B. It abolishes Article 32 for tribunal disputes. C. It makes CAT a High Court. D. It cannot exclude High Court and Supreme Court constitutional review after L. Chandra Kumar.

Answer: D. It cannot exclude High Court and Supreme Court constitutional review after L. Chandra Kumar.

Option-specific explanations:

- **A:** The seven-judge ruling preserves High Court review as basic structure.
- **B:** Article 32 review was protected in the same settlement.
- **C:** Reviewability does not transform CAT into a constitutional court.
- **D:** Correct: state the text and then binding post-1997 doctrine.

Examiner trap 4: Separate constitutional wording from enforceable effect after judicial review.

MCQ 5. Article 323B field

Which feature belongs specifically to Article 323B?

A. Tribunals for listed fields such as taxation and labour within legislative competence. B. Only recruitment to Union civil posts. C. Creation of CAT without a statute. D. Parliament-only power for every listed subject.

Answer: A. Tribunals for listed fields such as taxation and labour within legislative competence.

Option-specific explanations:

- **A:** Correct: Article 323B is multi-subject and competence-linked.
- **B:** That belongs to Article 323A's service field.
- **C:** No Part XIV-A provision self-executes CAT into existence.
- **D:** States may legislate within competence under Article 323B.

Examiner trap 5: Listed matter plus competence is the Article 323B formula.

MCQ 6. Article 323B hierarchy

Article 323B(3)(a) expressly permits:

A. One Union service tribunal only. B. A hierarchy of tribunals. C. Automatic conversion of regulators into courts. D. Removal of Article 136 by ordinary law.

Answer: B. A hierarchy of tribunals.

Option-specific explanations:

- **A:** This is not the exact 323B wording or scope.
- **B:** Correct: hierarchy is an express and examinable word.
- **C:** A parent statute, not a label, allocates adjudication.
- **D:** The original exclusion design itself preserved Article 136.

Examiner trap 6: An Article 323B hierarchy is not the constitutional-court hierarchy.

MCQ 7. CAT legal source

Which statement about CAT is accurate?

A. CAT is created directly by Article 323A. B. CAT is a constitutional court equal to a High Court. C. CAT is a statutory tribunal established under the Administrative Tribunals Act, 1985. D. CAT hears every dispute involving a Union employee.

Answer: C. CAT is a statutory tribunal established under the Administrative Tribunals Act, 1985.

Option-specific explanations:

- **A:** Article 323A enables legislation; it does not create CAT.
- **B:** CAT lacks High Court constitutional status and remains reviewable.
- **C:** Correct: the 1985 Act is the institutional source.
- **D:** Coverage depends on Sections 2, 3(q), 14 and notifications.

Examiner trap 7: Do not confuse constitutional authorisation with statutory creation.

MCQ 8. Section 4 institutions

Which institutional arrangement does Section 4 enable?

A. A State Legislature independently creates CAT. B. The Supreme Court establishes SATs by rule. C. Every district must have a separate tribunal. D. CAT, requested SATs and a Joint Administrative Tribunal for participating States.

Answer: D. CAT, requested SATs and a Joint Administrative Tribunal for participating States.

Option-specific explanations:

- **A:** CAT's establishment is not a State legislative act.
- **B:** The Central Government acts under statute; the Court does not establish SATs.
- **C:** Bench geography is not a district-by-district constitutional command.
- **D:** Correct: these are central, State and shared statutory forms.

Examiner trap 8: A Joint Tribunal is shared by States, not an appellate tier above CAT.

MCQ 9. Armed-forces exclusion

Who is excluded by Section 2 of the 1985 Act?

A. A member of the Union armed forces. B. Every civilian employee in a defence establishment. C. Every employee of a notified government corporation. D. Every member of an All-India Service.

Answer: A. A member of the Union armed forces.

Option-specific explanations:

- **A:** Correct: naval, military, air and other armed-forces members are expressly excluded.
- **B:** Civilian defence posts may fall within Section 14.
- **C:** Notification and coverage, not a blanket exclusion, govern such bodies.
- **D:** All-India Service matters are central to Section 14 coverage.

Examiner trap 9: Armed-forces member and civilian defence employee are not interchangeable.

MCQ 10. Judicial staff exclusion

Which additional category is expressly outside the 1985 Act?

A. All university teachers. B. Officers and servants of the Supreme Court, High Courts and subordinate courts. C. All employees of local authorities. D. All pensioners.

Answer: B. Officers and servants of the Supreme Court, High Courts and subordinate courts.

Option-specific explanations:

- **A:** Universities require a body-specific coverage inquiry.

- **B:** Correct: the judicial-establishment exclusion includes subordinate courts.
- **C:** A local authority may be covered through the statutory mechanism.
- **D:** Pension is a service matter, but employment and exclusions still control.

Examiner trap 10: Do not truncate the judicial-staff exclusion to only Supreme Court employees.

MCQ 11. Section 14 field

Section 14 primarily concerns:

A. Private contractual employment disputes. B. Criminal prosecution of public servants. C. Recruitment and service matters of covered Union-linked services and posts. D. Election petitions to Parliament.

Answer: C. Recruitment and service matters of covered Union-linked services and posts.

Option-specific explanations:

- **A:** Private employment is outside CAT's service statute.
- **B:** Criminal guilt belongs to the competent criminal forum.
- **C:** Correct: Section 14 defines central service jurisdiction.
- **D:** Election adjudication follows a distinct route.

Examiner trap 11: Both the legal relationship and subject must fall within Section 14.

MCQ 12. Notification

A government-controlled society's employees enter CAT jurisdiction:

A. Whenever it receives any public grant. B. Whenever an employee alleges unfairness. C. Only after a High Court transfers every case. D. When statutory extension/notification and other jurisdictional conditions cover the body and matter.

Answer: D. When statutory extension/notification and other jurisdictional conditions cover the body and matter.

Option-specific explanations:

- **A:** Funding alone is not the statutory test.
- **B:** Merits cannot create subject-matter jurisdiction.
- **C:** CAT jurisdiction does not depend on blanket High Court transfer.
- **D:** Correct: body coverage, service matter and exclusions all matter.

Examiner trap 12: Notification is a jurisdictional fact, not a decorative detail.

MCQ 13. Service matter

Which is a 'service matter' within Section 3(q)?

A. Seniority and promotion of a covered employee. B. A neighbour's property-boundary dispute. C. A prosecution for theft unrelated to service adjudication. D. A parliamentary election challenge.

Answer: A. Seniority and promotion of a covered employee.

Option-specific explanations:

- **A:** Correct: seniority and promotion are listed service-condition concerns.
- **B:** Private property title is outside CAT's field.
- **C:** Criminal liability follows criminal law.
- **D:** Election adjudication belongs elsewhere.

Examiner trap 13: Government employment does not turn every dispute into a service matter.

MCQ 14. SAT and JAT

Which statement about SAT/JAT is safest?

A. Every State must maintain a SAT permanently. B. Sections 15-16 allocate State and participating-State service jurisdiction, but actual existence varies. C. A JAT is the appellate court over every SAT. D. State legislatures enact SAT laws under Article 323A.

Answer: B. Sections 15-16 allocate State and participating-State service jurisdiction, but actual existence varies.

Option-specific explanations:

- **A:** The Act permits arrangements; it proves no live SAT in every State.
- **B:** Correct: distinguish legal route from current institutional map.
- **C:** A JAT is shared, not a universal appellate tier.
- **D:** Article 323A legislation is parliamentary.

Examiner trap 14: Never invent a uniform current SAT map.

MCQ 15. Exhaustion

Section 20 generally reflects which principle?

A. Direct Supreme Court access before any administrative decision. B. No remedy for departmental delay. C. Ordinary exhaustion of available departmental remedies before tribunal admission, subject to the Act. D. Automatic waiver of jurisdiction defects.

Answer: C. Ordinary exhaustion of available departmental remedies before tribunal admission, subject to the Act.

Option-specific explanations:

- **A:** Article 136 is not the starting route.
- **B:** The Act prevents endless administrative silence from blocking access.
- **C:** Correct: the tribunal ordinarily receives a developed dispute.
- **D:** Parties cannot consent into subject-matter jurisdiction.

Examiner trap 15: Exhaustion is a qualified statutory gateway, not an absolute slogan.

MCQ 16. Limitation

Which statement about Section 21 limitation is correct?

A. No limitation applies because procedure is flexible. B. Delay can never be condoned. C. The Evidence Act fixes the limitation period. D. The Act prescribes limitation and permits delayed admission on sufficient cause.

Answer: D. The Act prescribes limitation and permits delayed admission on sufficient cause.

Option-specific explanations:

- **A:** Flexibility does not erase time limits.
- **B:** Section 21 includes a sufficient-cause safety valve.
- **C:** Limitation comes from the tribunal statute.
- **D:** Correct: state both the rule and qualification.

Examiner trap 16: Flexible procedure is not timeless procedure.

MCQ 17. Section 22

Section 22 means that CAT:

A. Is guided by natural justice and not rigidly bound by the CPC. B. May decide without notice whenever it wishes. C. Must apply every Evidence Act rule exactly as a civil trial. D. Has no power to summon documents.

Answer: A. Is guided by natural justice and not rigidly bound by the CPC.

Option-specific explanations:

- **A:** Correct: flexibility and fairness operate together.
- **B:** Audi alteram partem remains central.
- **C:** Evidence remains testable, but strict mechanical application is not universal.
- **D:** Section 22 confers specified civil-court-type powers.

Examiner trap 17: Not bound by CPC does not mean not bound by law.

MCQ 18. Review power

Which power is included among Section 22 civil-court-type powers?

A. Amending the Constitution. B. Reviewing its decision within statutory bounds. C. Issuing a presidential pardon. D. Abolishing High Court review.

Answer: B. Reviewing its decision within statutory bounds.

Option-specific explanations:

- **A:** A tribunal has no constituent power.
- **B:** Correct: Section 22(3)(f) recognises review.
- **C:** Clemency is an executive constitutional power.
- **D:** Section 22 lists procedural powers; it cannot abolish High Court supervision under Articles 226/227.

Examiner trap 18: Review is bounded correction, not unrestricted appeal to the same bench.

MCQ 19. Contempt

What did T. Sudhakar Prasad establish?

A. Section 17 contempt power was impliedly repealed. B. Every CAT merits order goes directly to the Supreme Court. C. Administrative tribunals retain Section 17 contempt power; punishment appeals follow the special statutory route. D. High Courts lose all review over CAT.

Answer: C. Administrative tribunals retain Section 17 contempt power; punishment appeals follow the special statutory route.

Option-specific explanations:

- **A:** The Court held Section 17 survived L. Chandra Kumar.
- **B:** Direct Supreme Court routing concerns contempt punishment, not ordinary merits.
- **C:** Correct: distinguish contempt appeal from merits review.
- **D:** Ordinary decisions remain reviewable under Articles 226/227.

Examiner trap 19: A special contempt appeal does not rewrite the ordinary merits chain.

MCQ 20. High Court route

After L. Chandra Kumar, an ordinary CAT merits order is normally scrutinised first by:

- A. The President. B. The departmental secretary. C. A CAT administrative member as automatic appellate authority.
D. A Division Bench of the territorial High Court under Articles 226/227.

Answer: D. A Division Bench of the territorial High Court under Articles 226/227.

Option-specific explanations:

- **A:** Executive reconsideration is not constitutional review.
- **B:** The litigant department cannot provide independent judicial review.
- **C:** An intra-tribunal appeal needs statutory basis.
- **D:** Correct: this is the seven-judge routing rule.

Examiner trap 20: High Court scrutiny is judicial review, not a statutory appeal under the 1985 Act.

MCQ 21. Article 136

Article 136 is best described as:

- A. Discretionary special-leave jurisdiction, not an ordinary appeal as of right. B. A mandatory first appeal from every CAT order. C. A power exercised by State Legislatures. D. A clause eliminating High Court review.

Answer: A. Discretionary special-leave jurisdiction, not an ordinary appeal as of right.

Option-specific explanations:

- **A:** Correct: the Supreme Court chooses whether to grant leave.
- **B:** L. Chandra Kumar rejects routine bypass of High Court scrutiny.
- **C:** Article 136 vests power in the Supreme Court.
- **D:** It coexists with Articles 226/227.

Examiner trap 21: Never write 'appeal lies under Article 136 as of right'.

MCQ 22. Precedent

Which statement about tribunal precedent is sound?

- A. Tribunal decisions can overrule Supreme Court precedent. B. Tribunals follow Supreme Court and controlling High Court law; coordinate-bench discipline can give their decisions precedential force. C. No tribunal decision can ever guide a later bench. D. Technical members may ignore legal precedent.

Answer: B. Tribunals follow Supreme Court and controlling High Court law; coordinate-bench discipline can give their decisions precedential force.

Option-specific explanations:

- **A:** Article 141 forecloses departure from Supreme Court law.
- **B:** Correct: precedent is hierarchical and institutionally disciplined.
- **C:** This absolute claim would produce arbitrary adjudication.
- **D:** Expertise does not authorise disregard of binding law.

Examiner trap 22: Tribunal decisions are neither supreme nor legally meaningless.

MCQ 23. Sampath Kumar

S.P. Sampath Kumar is best understood as:

A. The final authority permanently excluding High Court review. B. A judgment abolishing CAT. C. Conditional acceptance of an effective alternative mechanism in the pre-L. Chandra Kumar substitution model. D. A ruling that technical members may replace all judges.

Answer: C. Conditional acceptance of an effective alternative mechanism in the pre-L. Chandra Kumar substitution model.

Option-specific explanations:

- **A:** Its exclusion premise was superseded by the 1997 holding.
- **B:** The Act was sustained with safeguards.
- **C:** Correct: this captures context and qualification.
- **D:** The case stressed efficacy and independence.

Examiner trap 23: Use Sampath Kumar historically, never as the current exclusion rule.

MCQ 24. L. Chandra Kumar

What is the central holding of L. Chandra Kumar?

A. Tribunals cannot hear any constitutional issue. B. Article 323A was wholly repealed. C. Only Article 136 is part of basic structure. D. Articles 226/227 and 32 judicial review are basic structure; tribunal decisions remain reviewable.

Answer: D. Articles 226/227 and 32 judicial review are basic structure; tribunal decisions remain reviewable.

Option-specific explanations:

- **A:** Tribunals remain first-instance forums for many issues.
- **B:** The Articles survive; exclusion is invalid to the relevant extent.
- **C:** The judgment protected broader constitutional review.
- **D:** Correct: specialist first instance and supervision coexist.

Examiner trap 24: The judgment limits exclusion, not tribunal existence.

MCQ 25. R. Gandhi

Union of India v R. Gandhi (2010) supports which proposition?

A. Transferred judicial functions require qualifications, selection and conditions preserving judicial independence. B. Every technical member is unconstitutional. C. Parliament lacks power to create company-law tribunals. D. Executive control is irrelevant if disposal is fast.

Answer: A. Transferred judicial functions require qualifications, selection and conditions preserving judicial independence.

Option-specific explanations:

- **A:** Correct: functional equivalence is the institutional test.
- **B:** Relevant technical expertise may supplement judicial members.
- **C:** Legislative competence was accepted subject to safeguards.
- **D:** Speed cannot cure separation-of-powers defects.

Examiner trap 25: The case attacks deficient design, not specialist adjudication.

MCQ 26. National Tax Tribunal

The 2014 National Tax Tribunal decision held that:

A. All taxation tribunals are prohibited. B. The NTT design invalidly transferred High Court substantial-law work without equivalent safeguards. C. Only accountants may decide substantial questions of law. D. High Court review may be removed whenever Article 323B is cited.

Answer: B. The NTT design invalidly transferred High Court substantial-law work without equivalent safeguards.

Option-specific explanations:

- **A:** Tax specialisation remains possible through adequate design.
- **B:** Correct: function, composition and independence were assessed together.
- **C:** Technical expertise cannot replace judicial competence for core legal work.
- **D:** Article 323B cannot insulate NTT decisions from basic-structure judicial review under Articles 226/227.

Examiner trap 26: Do not generalise one defective NTT design into a ban on tax adjudication.

MCQ 27. Rojer Mathew

Rojer Mathew (2019) did which of the following?

A. Upheld the 2017 Rules unchanged. B. Finally settled the Finance Act Money Bill question. C. Struck down the 2017 Tribunal Rules and referred the Money Bill issue to a larger bench. D. Made sponsoring ministries supreme over tribunals.

Answer: C. Struck down the 2017 Tribunal Rules and referred the Money Bill issue to a larger bench.

Option-specific explanations:

- **A:** The Rules failed independence standards.
- **B:** The issue was referred rather than finally resolved there.
- **C:** Correct: keep merits holding and reference separate.
- **D:** The decision policed, rather than enlarged, executive influence.

Examiner trap 27: A reference is not a final merits determination.

MCQ 28. Invalidated 2021 features

Which 2021-rule statement is constitutionally safe?

A. A four-year tenure is unquestionably current for every tribunal. B. A minimum appointment age of fifty binds every tribunal. C. The executive may freely choose outside constrained selection principles. D. Invalidated age, tenure and shortlist features cannot be frozen as current law; applicability is parent-Act specific.

Answer: D. Invalidated age, tenure and shortlist features cannot be frozen as current law; applicability is parent-Act specific.

Option-specific explanations:

- **A:** The short-tenure design at issue was invalidated.
- **B:** The fifty-year minimum was invalidated in the challenged framework.
- **C:** Selection remains constrained by independence principles.
- **D:** Correct: present the layered framework rather than dead provisions.

Examiner trap 28: Never copy a struck-down provision into a current-law note.

MCQ 29. Tribunal Reforms Act

What did the Tribunal Reforms Act, 2021 broadly do?

A. It abolished specified appellate bodies, transferred functions and provided a framework for covered tribunals, subject to rulings. B. It placed every tribunal under the Administrative Tribunals Act. C. It removed all High Court review. D. It converted CAT into a constitutional court.

Answer: A. It abolished specified appellate bodies, transferred functions and provided a framework for covered tribunals, subject to rulings.

Option-specific explanations:

- **A:** Correct: rationalisation and service conditions must be separately assessed.
- **B:** Distinct parent statutes continue.
- **C:** The basic-structure floor survives.
- **D:** Statutory amendment cannot confer constitutional-court status.

Examiner trap 29: Separate abolition/transfer provisions from invalidated service-condition provisions.

MCQ 30. Comparative tribunal basis

Which comparison is correctly matched?

A. CAT-telecom tariff disputes. B. NGT-specified environmental civil jurisdiction and appeals under the NGT Act. C. AFT-government-corporation employees under Section 14. D. TDSAT-central civil-service promotions.

Answer: B. NGT-specified environmental civil jurisdiction and appeals under the NGT Act.

Option-specific explanations:

- **A:** CAT principally handles covered service matters.
- **B:** Correct: legal basis and function match.
- **C:** AFT follows the Armed Forces Tribunal Act.
- **D:** TDSAT's field is telecom/broadcast.

Examiner trap 30: Match parent Act and function; do not classify by the generic word tribunal.

MCQ 31. Technical members

Which statement about technical members is correct?

A. They can always replace judicial members because the forum is specialised. B. They are barred from every tribunal. C. They may add domain expertise, but judicial work requires composition preserving adjudicatory independence. D. Executive service automatically proves personal bias in every case.

Answer: C. They may add domain expertise, but judicial work requires composition preserving adjudicatory independence.

Option-specific explanations:

- **A:** R. Gandhi rejects unlimited substitution of judicial competence.
- **B:** Tribunal design may legitimately use relevant technical expertise.
- **C:** Correct: expertise is balanced with functional equivalence.
- **D:** Structural safeguards matter without presuming personal bias.

Examiner trap 31: The constitutional question is role and design, not a blanket rule.

MCQ 32. Independent administration

Which reform most directly addresses the executive-as-litigant problem?

A. Short renewable terms controlled by the sponsoring ministry. B. Removing reasons from tribunal orders. C. Eliminating all physical benches. D. Independent appointment and administration with secure conditions and transparent vacancy management.

Answer: D. Independent appointment and administration with secure conditions and transparent vacancy management.

Option-specific explanations:

- **A:** Reappointment dependence intensifies influence.
- **B:** Unreasoned orders weaken accountability.
- **C:** Digital access should supplement physical access.
- **D:** Correct: institutional separation addresses structural dependence.

Examiner trap 32: Independence cannot rest solely on individual integrity.

PYQS AND ANSWER PRACTICE

Official-key discipline: UPSC publishes question papers but no official descriptive model answers. These questions follow the verified paper/routing record; solutions are examiner-oriented models, not official keys.

VERIFIED DIRECT PYQ 1 - 2018 GS-II Q12 - 15 marks - 250 words

Question (exact): "How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

Tribunals curtail ordinary courts' first-instance reach in assigned fields, but cannot extinguish constitutional supervision. Articles 323A and 323B, inserted by the Forty-second Amendment Act, 1976, enable specialist adjudication. The Administrative Tribunals Act, 1985 channels covered service disputes to CAT, SAT or JAT; other statutes create subject-specific forums. Expertise and flexible procedure support competence, not constitutional supremacy.

In S.P. Sampath Kumar, substitution was accepted only through an effective alternative institutional mechanism. L. Chandra Kumar then held Articles 226/227 and 32 judicial review to be basic structure, invalidating exclusion clauses to that extent. Tribunal decisions therefore face scrutiny by a territorial High Court Division Bench.

Competency also depends on institutional design. Union of India v R. Gandhi and the Madras Bar Association line require qualifications, selection, tenure and administration suited to judicial work transferred. Thus tribunals validly narrow ordinary first-instance jurisdiction, but remain supplemental forums whose legitimacy depends on independence, natural justice, capacity and preserved constitutional review.

Model word count: 157

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

VERIFIED DIRECT PYQ 2 - 2019 GS-II Q2 - 10 marks - 150 words

Question (exact): "The Central Administrative Tribunal which was established for redressal of grievances and complaints by or against central government employees, nowadays is exercising its powers as an independent judicial authority. Explain."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

CAT is a statutory adjudicatory body under Article 323A and the Administrative Tribunals Act, 1985. Section 14 gives it original jurisdiction over covered Union recruitment and service matters. Section 22 combines natural justice with

flexible procedure and civil-court-type powers; Section 17 supplies contempt authority. These features make CAT judicial in function rather than a departmental appellate office.

Independence is nevertheless qualified. Sections 2 and 14 bound jurisdiction; appointments, tenure, vacancies and administrative support affect structural autonomy. L. Chandra Kumar treats CAT as the first-instance forum but preserves scrutiny by a territorial High Court Division Bench under Articles 226/227. CAT may decide many constitutional issues, yet cannot replace a constitutional court. It therefore exercises genuine independent adjudicatory authority within a statutory field, subject to institutional safeguards and constitutional supervision.

Model word count: 129

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

VERIFIED DIRECT PYQ 3 - 2025 GS-II Q2 - 10 marks - 150 words

Question (exact): "Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021."

Demand: Address every clause; pair constitutional text with controlling doctrine and give a qualified verdict.

Model answer:

Administrative tribunals remain useful for technical, repetitive and high-volume disputes because specialist benches, flexible procedure and regional access can improve first-instance speed and consistency. CAT's service-law jurisdiction illustrates this task-fit. Yet L. Chandra Kumar preserves High Court review, so tribunals supplement rather than replace courts.

The Tribunal Reforms Act, 2021 abolished specified appellate bodies and transferred functions, potentially reducing duplication. The opposite risk is workload relocation: burdened courts may receive cases without specialist members, staff, records or local access. Its common service-condition design also faced the Madras Bar Association challenge; invalidated age, short-tenure and executive-choice features cannot be quoted as current law.

Rationalisation should be judged by disposal time, vacancy duration, user cost, expertise and remand rates. Consolidation works only with independent selection, adequate tenure, infrastructure and coherent appellate design.

Model word count: 131

Why it works: Claim -> named provision/case -> analysis -> qualification is visible.

ORIGINAL MAINS PRACTICE 1 - 10 marks - 150 words

Question: Distinguish a tribunal, a court, a quasi-judicial body and a departmental appellate authority. Answer within the stated word limit.

Model answer:

A tribunal is a statute-created adjudicatory body with limited subject jurisdiction; a court belongs to the ordinary or constitutional judiciary. A quasi-judicial body is a wider functional category: whenever an authority must hear affected parties, assess material impartially and give reasons, it performs a quasi-judicial function. A departmental appellate authority may therefore act quasi-judicially while remaining inside executive administration.

CAT supplies the clearest contrast. The Administrative Tribunals Act, 1985 gives it original jurisdiction and binding powers over covered service matters. A departmental appeal under service rules only reconsiders the employer's order and is ordinarily exhausted before CAT under Section 20. High Courts, unlike CAT, retain constitutional powers under Articles 226/227.

Thus, adjudicatory procedure alone does not decide status. Source, institutional separation, jurisdiction, binding effect and review route must be examined together; a tribunal is specialist justice, not a constitutional court or an ordinary department.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 146]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 2 - 10 marks - 150 words

Question: Explain the correct review and appeal routes from an administrative tribunal. Answer within the stated word limit.

Model answer:

A service dispute begins in CAT, SAT or JAT as an Original Application; this is original statutory jurisdiction, not an appeal from a High Court. The tribunal may review its own decision only within Section 22 and applicable rules.

L. Chandra Kumar held that judicial review under Articles 226/227 and 32 is basic structure. Consequently, an ordinary tribunal merits order is scrutinised by a Division Bench of the territorial High Court. A further approach to the Supreme Court is ordinarily through discretionary special leave under Article 136, not an appeal as of right directly from CAT.

A special route must be separate: under Section 17 and T. Sudhakar Prasad, an order punishing for contempt carries the statutory appeal contemplated by Section 19 of the Contempt of Courts Act to the Supreme Court. The governing question is therefore whether the remedy is review, constitutional scrutiny, statutory appeal or special leave.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 150]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 3 - 15 marks - 250 words

Question: Decode Articles 323A and 323B clause-by-clause and explain their present constitutional operation. Answer within the stated word limit.

Model answer:

The Forty-second Amendment Act, 1976 inserted Part XIV-A, but its two enabling Articles have different fields.

Article 323A(1) permits Parliament alone to legislate for recruitment and service-condition disputes in specified public employment. Clause 2(a) permits Union, State or shared-State administrative tribunals; (b) jurisdiction and contempt; (c) procedure, limitation and evidence; (d) textual exclusion of courts except Article 136; (e) pending-case transfer; (f) amendment of an Article 371D(3) order; and (g) fees, enforcement and incidental provisions. Clause 3 is a notwithstanding clause. The Administrative Tribunals Act, 1985 operationalises this field.

Article 323B(1) empowers the appropriate legislature within competence. Clause 2 lists taxation, foreign exchange and customs-frontier trade, labour, land reform, urban-property ceiling, elections, foodstuffs and essential goods, rent and tenancy, connected offences, fees and incidental matters. Clause 3 permits a hierarchy, jurisdiction and contempt, procedure, textual court exclusion, transfer and supplemental provisions; clause 4 gives overriding effect.

L. Chandra Kumar invalidated both exclusion clauses to the extent they oust Articles 226/227 and 32 review. Thus the text permits specialist first-instance systems, but constitutional courts retain the supervisory floor. Neither Article itself creates CAT or every subject tribunal.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 191]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 4 - 15 marks - 250 words

Question: Assess whether CAT combines expertise with independent judicial authority. Answer within the stated word limit.

Model answer:

CAT combines service-law specialisation with real adjudicatory powers, but independence depends on institutional design and constitutional review.

Under Sections 3(q) and 14 of the Administrative Tribunals Act, 1985, CAT decides covered recruitment, seniority, promotion, pension and disciplinary disputes. Section 22 guides it by natural justice, frees it from rigid CPC procedure and grants powers over witnesses, documents, affidavits and review. Section 17 supplies contempt authority. Judicial

and administrative members can bring legal method and public-administration experience to a repetitive docket, producing focused records and reasoned orders.

However, expertise is not independence. Government is a frequent litigant and influences appointments, administration and resources. Vacancies, insecure tenure and sponsoring-ministry dependence can impair appearance and performance. S.P. Sampath Kumar demanded an effective alternative mechanism; Union of India v R. Gandhi tied transferred judicial work to equivalent qualifications and safeguards.

L. Chandra Kumar provides the decisive qualification: CAT is a first-instance tribunal, not a High Court substitute, and decisions face Division Bench scrutiny under Articles 226/227. CAT exercises independent judicial authority in function, but that authority remains statutory, reviewable and credible only when appointment, tenure, infrastructure and decisional autonomy are secured.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 190]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 5 - 20 marks - 250 words

Question: Critically examine tribunal-independence litigation from R. Gandhi to the Tribunal Reforms Act, 2021. Answer within the stated word limit.

Model answer:

Modern tribunal litigation shows that controversy concerns institutional design more than Parliament's abstract power to create specialist forums.

Union of India v R. Gandhi (2010) accepted transfer of company-law jurisdiction to NCLT/NCLAT, but required member qualifications, selection and conditions equivalent to the judicial work transferred. The 2014 National Tax Tribunal decision applied that logic more strictly: a tribunal could not displace High Court adjudication on substantial questions of law through executive-influenced composition and inadequate judicial standards.

The Finance Act, 2017 merged bodies and authorised common service-condition rules. In Rojer Mathew (2019), the Supreme Court struck down the 2017 Rules for independence defects and referred, rather than finally settled, the Money Bill issue. Madras Bar Association (2020) again insisted on judicially balanced selection and adequate tenure. The 2021 decision invalidated reproduced defects including the fifty-year minimum age, four-year tenure and executive choice from a two-name recommendation arrangement.

The Tribunal Reforms Act, 2021 also rationalised specified appellate bodies. Consolidation may reduce duplication, but transfer can burden courts and reduce expertise. Its framework applies only as legally specified and remains controlled by judgments.

The recurring lesson is functional equivalence: technical expertise may supplement, not displace, judicial competence. Durable reform requires independent administration, secure conditions, transparent appointments and preserved High Court review.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 210]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.

ORIGINAL MAINS PRACTICE 6 - 20 marks - 250 words

Question: Design a reform framework that improves tribunal speed, access, consistency and independence. Answer within the stated word limit.

Model answer:

Tribunal reform should pursue task-fit rather than indiscriminate creation or abolition. A specialist forum is justified where caseload, technical complexity and user access exceed the advantages of ordinary courts.

First, appointments require a transparent vacancy calendar, judiciary-weighted search and selection, published eligibility reasons and binding timelines. Secure adequate tenure and objective removal reduce reappointment dependence. Union of India v R. Gandhi and the Madras Bar Association decisions provide the constitutional basis.

Second, administration should be separated from the repeat litigant. A National Tribunals Commission or comparable independent support body could manage budgets, staff, infrastructure, training and data, while leaving adjudication to benches. Its design must preserve sector expertise and federal variation.

Third, access needs regional benches, e-filing, assisted digital facilities, legal aid, accessible cause lists and searchable reasoned orders. Larger-bench reference rules can resolve conflicting tribunal precedent.

Fourth, appellate architecture must distinguish review, statutory appeal and Article 136. L. Chandra Kumar's High Court Division Bench scrutiny cannot be removed, but needless internal tiers should be avoided.

Finally, rationalisation should publish transition plans for judges, staff, records and pending cases and measure vacancy duration, disposal time, remand rate and user cost. The goal is independent specialist first-instance justice under constitutional supervision, not merely fewer institutions.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 205]

Examiner check: Claim -> named evidence -> analysis -> qualification is visible; the directive and ceiling are respected.